

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: April 23, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER ON JOINT MOTION FOR LEAVE TO FILE REPLY AND SUR-REPLY

On April 23, 2024, the parties filed a joint motion for leave to file a reply and sur-reply with respect to Complainant's March 29, 2024 motion to compel and for sanctions for spoliation of evidence. I invited the parties to file the joint motion on April 17, 2024, when Complainant's counsel brought to my attention that the opposition to the motion to compel introduced new evidence. I found that the additional briefing would be helpful and would not delay the proceeding. While the joint motion is dated April 18, 2024, it was not received in the Office of the Secretary until April 23, 2024, after Complainant had already filed its reply on April 22, 2024. The joint motion is hereby

GRANTED *nunc pro tunc*, and the Office of the Secretary is requested to accept Complainant's April 22, 2024 reply; is is further

ORDERED that Respondent must file its sur-reply no later than **April 29, 2024**; the sur-reply is limited to five pages.

Alex Michael
Chintella

Digitally signed by
Alex Michael Chintella
Date: 2024.04.23
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Alex M. Chintella
Administrative Law Judge